

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]



CHAPTER 1.

An Act to empower the mayor aldermen and burgesses of the borough of Richmond (Surrey) to construct street works to confer further powers upon them with respect to their water undertaking to make better provision with respect to the health local government and finance of the borough and for other purposes.

A.D. 1937.

[1st July 1937.]

WHEREAS the borough of Richmond (Surrey) (hereinafter referred to as "the borough") is a municipal borough under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas it is expedient to empower the Corporation to construct the street works authorised by this Act and to acquire lands for that purpose:

And whereas the Corporation supply water within part of the borough and it is expedient that further powers should be conferred upon them with respect to their water undertaking:

And whereas it is expedient to make further and better provision with respect to the health local government and finance of the borough and to enlarge the powers of the Corporation with regard thereto:

And whereas it is expedient that the other provisions of this Act be enacted:

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—

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

The construction of the street works	£
authorised by this Act - - -	5,150
The purchase of lands under the powers	
of this Act - - - - -	29,270

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas a plan and sections showing the lines and levels of the street works authorised by this Act and a plan of the lands which may be taken or used compulsorily under the powers of this Act and a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands respectively have been deposited with the clerk of the county council of the administrative county of Surrey and are in this Act respectively referred to as “the deposited plan” “the deposited sections” and “the deposited book of reference” :

23 & 24
Geo. 5. c. 51.

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Richmond (Surrey) Corporation Act 1937.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Street works and lands.

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Part	III.—Water.	A.D. 1937.
Part	IV.—Streets and buildings.	—
Part	V.—Infectious disease and sanitary provisions.	PART I. —cont.
Part	VI.—Human food.	
Part	VII.—Superannuation &c.	
Part	VIII.—Financial provisions.	
Part	IX.—Miscellaneous.	

3. The Lands Clauses Acts (except sections 127 to 131 of the Lands Clauses Consolidation Act 1845) so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act and for the purpose of such incorporation the expression “the promoters of the undertaking” in those Acts shall mean the Corporation :

Incorporation of
Acts.
8 & 9 Vict.
c. 18.

Provided that the bond required by section 85 (Promoters to be allowed to enter on lands before purchase on making deposit by way of security and giving bond) of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4. In this Act unless the subject or context otherwise requires and except as otherwise expressly provided— Interpretation.

- (1) Words and expressions to which by the Acts wholly or partly incorporated with this Act or by the Act of 1936 meanings are assigned have in relation to the relative subject matter the same respective meanings;
- (2) “The borough” means the borough of Richmond (Surrey);
- (3) “The council” means the council of the borough;
- (4) “The Corporation” means the mayor aldermen and burgesses of the borough;
- (5) “The town clerk” “the surveyor” “the treasurer” “the medical officer” “the sanitary inspector” and “the waterworks engineer” mean respectively the town clerk the surveyor

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PART I.
—cont.

the treasurer the medical officer of health and any sanitary inspector of the borough and the waterworks engineer of the Corporation;

(6) "The general rate" and "the general rate fund" mean respectively the general rate and the general rate fund of the borough;

(7) "The street works" means the works authorised by Part II of this Act;

(8) "The tribunal" means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Act of 1919;

(9) "Telegraphic line" has the same meaning as in the Telegraph Act 1878;

41 & 42 Vict.
c. 76.

(10) "The water limits" means the limits within which the Corporation are for the time being supplying water;

18 & 19
Geo. 5.
c. 31.

(11) "Food" has the meaning assigned to it by section 34 (Definitions) of the Food and Drugs (Adulteration) Act 1928;

(12) "Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

38 & 39 Vict.
c. 83.

(13) "Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order

confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed but shall not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 (Temporary loans &c.) of the Act of 1933;

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PART I.
—cont.

(14) "Security of the Corporation" means any mortgage bond debenture annuity stock or other security granted issued or created by the Corporation;

(15) "Daily penalty" means a penalty for each day on which any offence is continued by a person after conviction;

(16) "Local enactment" includes this Act and any local Act Order byelaw or regulation for the time being in force within the borough;

(17) "The Minister" means the Minister of Health;

(18) "The county council" means the county council of the administrative county of Surrey;

(19) "The Act of 1919" means the Acquisition of Land (Assessment of Compensation) Act 1919; 9 & 10 Geo. 5. c. 57.

(20) "The Act of 1922" means the Local Government and other Officers' Superannuation Act 1922; 12 & 13 Geo. 5. c. 59.

(21) "The Act of 1933" means the Local Government Act 1933;

(22) "The Act of 1936" means the Public Health Act 1936; 26 Geo. 5. & 1 Edw. 8. c. 49.

(23) "The Lands Clauses Acts" means the Lands Clauses Acts as modified by the Act of 1919.

PART II.

STREET WORKS AND LANDS.

5.—(1) The Corporation may in the lines and according to the levels shown upon the deposited plan and sections make and maintain the street works Power to make street works.

A.D. 1937. in the borough hereinafter mentioned with all proper
— and necessary junctions connections approaches sewers
PART II. drains works and conveniences in connection
—cont. therewith :—

Work No. 1 A widening and improvement of
Petersham Road on its easterly side including
the construction of an embankment across
Compass Hill;

Work No. 2 A widening and improvement of Hill
Rise on its westerly side.

(2) All rights of way for vehicular traffic over
that portion of Compass Hill upon which the said
embankment is constructed shall be by virtue of this
Act extinguished.

Power to
deviate in
construction
of street
works.

6. The Corporation in constructing the street
works may deviate laterally from the lines or situations
of those works as shown on the deposited plan to any
extent not exceeding the limits of deviation shown
on that plan and may deviate vertically from the levels
shown on the deposited sections to any extent not
exceeding five feet either upwards or downwards.

Subsidiary
works.

7.—(1) Within the limits of deviation shown on
the deposited plan the Corporation may in connection
with the street works and for the purposes thereof—

- (a) make junctions and communications with any
existing street which may be intersected
or interfered with by or be contiguous to the
street works and divert widen or alter the line
or level of any existing street for the purpose
of connecting the same with the street works
or of crossing under or over the same or
otherwise;
- (b) alter and remove any drinking troughs lamp-
posts railings refuges or other structures
erected upon any street or land;
- (c) execute any works for the protection of any
adjoining land or buildings;
- (d) execute any works and do any things necessary
for the strengthening and supporting of any
walls of adjoining buildings;

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(e) remove alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in carrying out such removal alteration diversion or stopping up.

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PART II.
—cont.

(2) The Corporation shall not alter divert or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(3) If under the powers of this section the Corporation provide a sewer in substitution for a private sewer the sewer so provided shall (notwithstanding anything in any Act to the contrary) be deemed to be a private sewer.

8. Within the limits of deviation shown on the deposited plan the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains and the pipes or wires for the purpose of conveying water gas or electricity to any house or other place and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 278 (Compensation to individuals for damage resulting from exercise of powers under Act) of the Act of 1936 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Power to
alter steps
pipes areas
&c.

9. And whereas in order to avoid in the execution and maintenance of the street works injury to the houses and buildings within one hundred feet of those works it may be necessary to underpin or otherwise strengthen the same therefore the Corporation at their own costs and charges may and if required by the owner or lessee of any such house or building shall

Under-
pinning of
houses near
works.

A.D. 1937. (subject as hereinafter provided) underpin or otherwise
strengthen the same and the following provisions shall
have effect :—
PART II.
—cont.

- (1) At least ten days' notice shall except in emergency be given to the owner lessee and occupier or by the owner or lessee of the house or building so intended or so required to be underpinned or otherwise strengthened :
- (2) Each such notice if given by the owner or lessee of the premises to be underpinned or strengthened shall be sent to the Corporation :
- (3) If any owner lessee or occupier of any such house or building or the Corporation (as the case may be) shall within seven days after the giving of such notice give a counter notice in writing that he or they disputes or dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer (in this section referred to as "the referee") to be agreed upon or in case of difference appointed at the instance of either party by the Minister of Transport and the Arbitration Acts 1889 to 1934 shall apply to the reference :
- (4) The referee shall forthwith upon the application of either party proceed to inspect the house or building and determine the matter referred to him and if he shall decide that such underpinning or strengthening is necessary he may and if so required by the Corporation or such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Corporation may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The Corporation shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this section :

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- (6) If any house or building shall have been underpinned or strengthened on the requisition of the Corporation and such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the street works then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Corporation shall make compensation to the owners lessees and occupiers of the house or building for such injury provided that the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :

- (7) Nothing in this section nor any dealing with any property in pursuance of this section shall relieve the Corporation from the liability to compensate under section 68 (Compensation in respect of lands injuriously affected by works may be settled either by arbitration or by jury) of the Lands Clauses Consolidation Act 1845 or under any other Act :

- (8) Nothing in this section shall repeal or affect the application of section 92 (Parties not to be required to sell part of a house) of the Lands Clauses Consolidation Act 1845.

10.—(1) The Corporation during and for the purpose of the execution of the street works may break up and also temporarily stop up and divert and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any house in the street from passing along and using the same.

Temporary
stoppage of
streets.

(2) The Corporation shall provide reasonable access for foot passengers bona fide going to or from any such house.

(3) The Corporation shall not exercise the powers of this section so as to prevent reasonable access for foot passengers and vehicular traffic bona fide going to or

A.D. 1937. from any railway station or depot of any railway company.

PART II.
—cont.

23 & 24
Geo. 5. c. 14.

(4) Nothing in this section shall authorise the stopping up of any street which forms or forms part of a route approved under section 61 (Provisions as to routes for road services within special area) of the London Passenger Transport Act 1933 so as to prevent the efficient operation along such street of services of public service vehicles.

Carriage-
ways
footways
sewers
and other
works.

11.—(1) The Corporation may cause such parts of the street works to be laid out for carriageway and such parts thereof for footway as they may think proper and may upon the lands acquired by or vested in them under the powers of this Act and within the limits of deviation defined on the deposited plan construct erect and provide such vaults cellars arches sewers drains subways and other works and conveniences as they may think proper for the purposes of or in connection with the street works.

(2) If under the powers of this section the Corporation provide a sewer in substitution for a private sewer the sewer so provided shall (notwithstanding anything in any Act to the contrary) be deemed to be a private sewer.

Application
of road
materials
excavated
in con-
struction of
works.

12. Any paving metalling or like materials excavated by the Corporation in the construction of any works authorised by this Part of this Act from any road under their jurisdiction and control shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit.

Period for
completion
of works.

13. If the street works are not completed within five years from the passing of this Act then as from the expiry of that period the powers of the Corporation under this Part of this Act for the execution of the street works shall cease except so far as the same are respectively then completed.

Notice to
Commis-
sioner of
Police.

14. Before breaking up or otherwise interfering with any street in connection with the execution of any works under the powers of this Part of this Act the Corporation shall (except in cases of emergency) give seven days' notice in writing to the Commissioner of Police of the

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Metropolis and make such arrangements with the commissioner as may be reasonably necessary so as to cause as little interference as may be reasonably practicable with the traffic in the street during the execution of such works.

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PART II.
—cont.

15. The Corporation may enter upon take appropriate and use all or any of the lands delineated on the deposited plan and described in the deposited book of reference which they may require for the purposes of the street works and for the improvement and development of frontages or of any lands abutting on or adjacent to any street.

Power to
take lands.

16. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the borough for the correction of such plan or book of reference and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk of the county council and a duplicate thereof shall be deposited with the town clerk and such certificate or copy and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plan or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Correction
of errors in
deposited
plan and
book of
reference.

17. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the

Persons
under
disability
may grant
easements
&c.

A.D. 1937. said Acts with respect to lands and rentcharges so far
— as the same are applicable in this behalf shall extend
PART II. and apply to such grants and to such easements rights
—cont. and privileges as aforesaid respectively.

Provisions
as to cellars
under
streets not
referenced.

18. Nothing in this Act shall authorise the Corpora-
tion to enter upon take or use (except by agreement)
any cellar or vault in or under any street belonging to or
connected with any building unless such cellar or vault
or the building with which it is connected is described
in the deposited book of reference.

Owners
may be
required to
sell parts
only of
certain
properties.

19. And whereas in the construction of the street
works or otherwise in the exercise by the Corporation
of the powers of this Act it may happen that portions
only of certain properties shown on the deposited plan
will be sufficient for the purposes of the Corporation
and that such portions or some other portions less than
the whole can be severed from the remainder of the said
properties without material detriment thereto therefore
the following provisions shall have effect:—

- (1) The owner of and persons interested in any of
the properties numbered 11 12 13 and 14 on
the deposited plan whereof a portion only is
required for the purposes of the Corporation
or each or any of them are hereinafter in this
section included in the term “the owner” and
the said properties are hereinafter in this section
referred to as “the said properties”:
- (2) If for twenty-one days after the service of notice
to treat in respect of a specified portion of any
of the said properties the owner shall fail to
notify in writing to the Corporation that he
alleges that such portion cannot be severed
from the remainder of the property without
material detriment to such remainder he may
be required to sell and convey to the Corpora-
tion such portion only without the Corporation
being obliged or compellable to purchase the
whole the Corporation paying for the portion
so taken and making compensation for any
damage sustained by the owner by severance
or otherwise:
- (3) If within such twenty-one days the owner shall
by notice in writing to the Corporation allege

that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the whole of the portion of the said property specified in the notice to treat can be severed from the remainder without material detriment to such remainder and if not whether any and what other portion (which may include part of the portion in respect of which such notice to treat was served) of such said property can be so severed :

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PART II.
—*cont.*

- (4) If the tribunal determines that the whole of the portion of the said property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment to such remainder the owner may be required to sell and convey to the Corporation the portion so determined to be severable without the Corporation being obliged or compellable to purchase the whole of such said property the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determines that the whole of the portion of the said property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment to such remainder the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determines that the whole of the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment to such remainder (and whether or not it shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay

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PART II.
—cont.

to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

- (7) If the tribunal determines that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment to such remainder but that any such other portion as aforesaid can be so severed such notice to treat shall be construed and read as if such other portion as aforesaid had been substituted therein for the portion originally specified therein and the Corporation may withdraw such notice to treat and thereupon shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice but if the Corporation shall not withdraw such notice they shall pay to the owner so much of all costs charges and expenses reasonably and properly incurred by him in consequence of such notice as the tribunal shall having regard to the circumstances of the case think fit and its determination thereon shall be final.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 and nothing in or done under this section shall be held as determining or as being or implying an admission that any of the said properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 (Parties not to be required to sell part of a house) of that Act.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Power to
enter upon
property for
survey and
valuation.

20. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken and used

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or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

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PART II.
—cont.

21.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

Extinction
of private
rights of
way.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights, and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

22. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Part of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of November nineteen hundred and thirty-six if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensa-
tion in case
of recently
acquired
interest.

23. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any Government department is required only with such consent.

Compensa-
tion may be
in land &c.

24. In determining the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Part of this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so

Benefits to
be set off
against
compensa-
tion.

A.D. 1937. acquired or of any other lands of such person which are contiguous with such adjoining lands arising out of the execution of the street works or any of them or arising through such adjoining lands becoming lands fronting on any street shall be fairly estimated and shall be set off against the said compensation or purchase money.

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PART II.
—cont.

Purchase of
lands for
exchange.

25. The powers of the Corporation of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Corporation by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of this Act.

Power to
reinstate
owners of
property.

26. The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any land which may be acquired under the provisions of this Act or of any general or local Act conferring upon the Corporation power to acquire land with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

Retention
and disposal
of lands.

27.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Corporation may retain and hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the borough (other than the Housing Act 1936 or any Act repealed by that Act) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange :

26 Geo. 5. &
1 Edw. 8.
c. 51.

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise

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dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained :

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PART II.
—cont.

Provided also that nothing in this section shall be taken to dispense with the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Corporation other than lands acquired under any local Act applying to the Corporation in any case in which such consent would have been required if this Act had not been passed.

(2) Nothing in this section shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in the like manner and to the same extent as if this Act had not been passed.

28.—(1) The Corporation may (with the consent of the Minister) lay out and develop any lands at any time belonging to the Corporation and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave flag channel and kerb streets roads and ways on any such lands.

Power to
develop
lands.

(2) The Corporation may use or dispose of the building or other materials of any houses or premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

29. For the protection of the Gas Light and Coke Company (in this section referred to as " the company ") the following provisions shall unless otherwise agreed

For pro-
tection of
Gas Light
and Coke
Company.

A.D. 1937. in writing between the company and the Corporation
— apply and have effect (that is to say) :—

PART II.
—cont.

(1) Not less than twenty-eight days before commencing any of the street works the Corporation shall deliver to the company a plan section and particulars of such work describing the proposed manner of executing the same and showing the whole of the works proposed to be executed in connection therewith :

(2) (a) At any time within twenty-eight days from the receipt of such plan section and particulars the company may by notice in writing to the Corporation intimate their disapproval of the proposed manner of executing such work so far as it will or may involve interference with or endanger any mains pipes valves or other works or apparatus (all of which are in this section referred to as "apparatus") of the company or make any reasonable requirements with respect to such plan section and particulars ;

(b) If the company shall not within the said period of twenty-eight days give any such notice in writing to the Corporation as aforesaid they shall be deemed to have approved the plan section and particulars as submitted and if within that period they give such notice the matters in difference shall (if not agreed between the company and the Corporation) be settled by arbitration :

(3) The Corporation shall not construct any such work as aforesaid except in strict accordance with the said plan section and particulars as so approved or deemed to have been approved by the company or settled by arbitration :

(4) If in the exercise of any of the powers of this Part of this Act the Corporation lower or raise the level of any street or road so as to leave over any apparatus of the company a covering of less than three feet where the existing covering is not less than three feet or less than the existing covering where the same is less than three feet or more than five feet where the existing covering is not more than five feet or more than the

existing covering where the same is more than five feet the company may— A.D. 1937.

(a) relay such apparatus at such depth that the covering over such apparatus will be not less than such minimum covering or more than such maximum covering; or

(b) where the apparatus is situate in the carriageway of such street or road divert the same under the footway of such street or road and lay the same at such depth as to provide the said minimum covering or such less covering as they may think fit :

(5) The Corporation shall not in the exercise of any of the powers of this Part of this Act remove alter divert or stop up or raise sink or otherwise alter the position of or interfere with any apparatus of the company or do anything which may impede the passage of gas into or through such apparatus or interfere with the access thereto—

(a) without the consent in writing of the company which shall not be unreasonably withheld; nor

(b) in any manner other than shall be reasonably approved by the company; nor

(c) until the company shall have provided and laid down and made ready for use (which if done shall be done with all reasonable dispatch) such good and sufficient apparatus (hereinafter referred to as “substituted apparatus”) as they may reasonably consider necessary for continuing the supply of gas :

(6) The company may if it is reasonably necessary so to do for the protection of the apparatus of the company and if required by the Corporation shall with all reasonable dispatch—

(i) provide and lay down such works and apparatus as may be reasonably necessary for that purpose; or

(ii) raise sink or otherwise alter the position of any apparatus of the company and support the same and substitute temporarily or otherwise other apparatus in such manner as

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PART II.
—cont.

A.D. 1937.

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PART II.
—cont.

may be reasonably necessary and lay or place under any apparatus cement concrete or other protective substance :

- (7) All works to be executed or provided by the Corporation under this section or under any other provision of this Part of this Act in connection with any apparatus of the company shall be so executed or provided to the reasonable satisfaction of the company and at the expense of the Corporation :
- (8) Notwithstanding the stopping up temporarily of any street under the powers of section 10 (Temporary stoppage of streets) of this Act the company their engineers and workmen and others in their employ shall at all times have all such rights of access to all or any apparatus of the company situate in or under such street as they would have had if such street had not been stopped up and shall be at liberty to execute and do all such works and things in upon or under such street as may be necessary for inspecting repairing maintaining removing or renewing such apparatus :
- (9) If in the exercise by the Corporation of any of the powers of this Part of this Act any damage to any apparatus or property of the company or any interruption in the supply of gas by the company shall be caused the Corporation shall bear and pay to the company the cost reasonably incurred by the company in making good such damage and shall make full compensation to the company for any loss sustained by them by reason of such interruption of supply and shall indemnify the company against all claims demands proceedings costs damages and expenses which may be made or taken against or recovered from or incurred by the company by reason or in consequence of any such damage or interruption :
- (10) If any loss of gas shall be sustained by the company by reason of any act or omission of the Corporation or of any of their contractors agents workmen or servants or any person

in the employ of them or any of them in the exercise by the Corporation of any of the powers of this Part of this Act the Corporation shall pay to the company the value of any gas so lost as aforesaid :

A.D. 1937.

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PART II.

—cont.

(11) The expense of all repairs or renewals of any apparatus of the company which may at any time be rendered necessary by reason or in consequence of any act omission or default of the Corporation or their contractors or agents or the workmen or servants or any person in the employ of them or any of them or by or in consequence of any failure of the works of the Corporation or any subsidence resulting from such works whether during the construction of such works or within the period of twelve months after the completion thereof shall be borne by the Corporation and paid by them on demand to the company :

(12) The Corporation shall bear and pay to the company the amount of any expenses reasonably incurred by the company in or in connection with—

(a) the execution of any works or the doing of any thing under the provisions of subsection (6) of this section ; or

(b) the removal or any alteration of any communication pipes rendered necessary by reason or in consequence of the exercise of the powers of this Part of this Act ;

and shall indemnify the company against all claims and demands by the owner of any such communication pipe or by the owners or occupiers of premises supplied by means thereof :

(13) The Corporation shall bear and pay the cost reasonably incurred by the company in the employment of watchmen and inspectors with reference to and during the execution by the Corporation under this Part of this Act of any works affecting or likely to affect any apparatus of the company :

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PART II.
—cont.

- (14) If any difference shall arise between the Corporation and the company under this section (other than a difference as to the construction or meaning of this section) such difference shall be referred to arbitration.

For pro-
tection of
Richmond
(Surrey)
Electric
Light and
Power
Company
Limited.

45 & 46 Vict.
c. 56.

30. For the protection of the Richmond (Surrey) Electric Light and Power Company Limited (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say):—

- (1) In this section the expression "apparatus" means and includes all or any electric lines (as defined by the Electric Lighting Act 1882) street boxes lamp-posts works or other apparatus belonging to the company:
- (2) Before commencing to execute any part of the street works the Corporation shall deliver to the company plans and sections and a description of any works so proposed to be executed describing the proposed manner of executing the same and such plans sections and description shall be delivered to the company not less than twenty-eight days and not more than forty-two days before the commencement of any such works:
- (3) If it should appear to the company that such works will interfere with or endanger any of their apparatus or render access thereto more difficult or impede the supply of electricity the company may at any time within twenty-eight days from the receipt of such plans sections and description give notice to the Corporation to lower raise or otherwise alter the position of such apparatus or to support the same or to substitute temporarily or otherwise other apparatus in such manner as may be reasonably necessary or to lay or place under any apparatus cement concrete or other like substance and any difference as to the necessity of such lowering raising alteration support substitution laying or placing cement concrete or other like substance (in this section

called "protective works") shall be settled by arbitration and all such protective works shall (save as in this section provided) be done and executed by and at the expense of the Corporation but to the reasonable satisfaction and under the superintendence of the engineer of the company. And if the company by notice in writing to the Corporation within twenty-eight days after the receipt by the company of notice of the intended commencement by the Corporation of such works of the Corporation so require the company may by their own engineer or workmen do and execute such protective works so far as they affect the apparatus of the company and the Corporation shall on completion thereof pay to the company the reasonable expenses incurred by them in the execution of such protective works :

- (4) If the company shall not within the period of twenty-eight days mentioned in subsection (3) of this section give any such notice as is first mentioned in that subsection to the Corporation they shall be deemed to have approved the plans sections and description so delivered as aforesaid and the works shall be executed in strict accordance therewith :
- (5) The company may if they deem fit employ watchmen or inspectors to watch and inspect the street works during their execution and the reasonable wages of such watchmen or inspectors shall be borne by the Corporation and be paid by them to the company :
- (6) Should any interruption of the supply of electricity by the company be occasioned either by reason of the exercise by the Corporation of the powers of this Part of this Act or by any act or default of the Corporation or any of their contractors agents workmen or servants or any person in the employ of them or any or either of them in connection with the exercise of such powers the Corporation shall indemnify the company against all claims demands proceedings costs losses damages and expenses which may be made or taken against the

A.D. 1937.

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PART II.
—cont.

A.D. 1937.

PART II.
—cont.

company or which the company may incur consequent upon such interruption :

- (7) The expenses of all repairs or renewals of any apparatus of the company which may at any time hereafter be rendered necessary either by reason of the exercise of the powers of this Part of this Act relating to the street works or by the acts or defaults of the Corporation their contractors agents workmen or servants or any person in the employ of them or any or either of them or rendered necessary by reason of any subsidence resulting from the street works whether during the construction of the works or within the period of twelve months after the completion thereof shall be borne and paid by the Corporation :
- (8) Notwithstanding anything to the contrary in this Act contained in carrying out the street works the Corporation shall not without the consent in writing of the company (which consent shall not be unreasonably withheld)—
- (a) remove displace or alter any apparatus of the company ; or
 - (b) do anything to interrupt the continuous supply of electricity by means of such apparatus ;
- until good and sufficient apparatus and all other works reasonably necessary or proper for maintaining the continuity of such supply shall at the expense of the Corporation have been first made and laid down by the company (which shall be done with all reasonable dispatch) and be ready for use in such position in a road or footpath as the company shall reasonably require :
- (9) Notwithstanding the stopping up temporarily of any street under the powers of this Part of this Act the company their engineers and workmen and others in their employ may exercise the same rights of access as they now enjoy to all or any apparatus of the company situate in or under any such street and for the purpose of placing additional apparatus

provided that in so doing the company their engineers or workmen or others in the employ of the company shall not interrupt the use of any works of the Corporation by this Act authorised and provided also that the company shall make good and reimburse to the Corporation all damages to such last mentioned works occasioned by the exercise of the powers reserved by this section :

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 PART II.
 —cont.

(10) Any difference between the Corporation and the company under this section (other than a difference as to the meaning or construction of this section) shall be referred to an arbitrator to be appointed in default of agreement by the President of the Institution of Electrical Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration :

(11) In settling any difference under this section between the Corporation and the company the arbitrator shall have regard to any duties or obligations which the company may be under in respect of their apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid as far as may be reasonably possible interference with any purpose for which the apparatus of the company is used.

31. Nothing in this Part of this Act shall authorise the use laying out or development of any lands or the erection or maintenance of any buildings or the construction of any streets roads or ways in contravention of—

Saving for
 Town and
 Country
 Planning
 Act &c.

(a) any scheme order or regulation made under the Town Planning Act 1925 or the Town and Country Planning Act 1932 and applicable to such lands buildings streets roads or ways; or

15 & 16
 Geo. 5. c. 16.
 22 & 23
 Geo. 5. c. 48.

(b) any provision of any Act or Order which—

(i) prescribes or enables a county council urban local highway or other authority to prescribe a building or frontage line to be observed in any street or road; or

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PART II.
—cont.

(ii) prohibits or controls the erection of buildings or the making of excavations within a specified distance of any part of any street or road; or

(iii) restricts or controls the use of land or the construction of any means of access to land.

PART III.

WATER.

Charges for
horses and
washing
vehicles.

32.—(1) Where a person who takes from the Corporation a supply of water for domestic purposes otherwise than by measure is the occupier of stables garages or other premises where horses or motor cars or other carriages are kept and the water supplied to that person for domestic purposes is used for horses or washing carriages or other purposes in or in connection with such premises the Corporation may—

- (a) if the water so used can be taken from a standpipe or tap (not being a standpipe or tap within any dwelling-house occupied with such premises) but no hosepipe or other similar apparatus be used in connection with such standpipe or tap charge in respect of the water so used such sum not exceeding ten shillings per annum as they may prescribe and where more carriages than one are kept a further sum not exceeding five shillings for each carriage beyond the first; and
- (b) if the water so used be used by means of a hosepipe or other similar apparatus charge in respect of the water so used such sum not exceeding twenty shillings per annum as they may prescribe and where more carriages than one are kept a further sum not exceeding ten shillings per annum for each carriage beyond the first.

(2) Any sums chargeable under subsection (1) of this section shall be in addition to the rates authorised for the supply of water for domestic purposes and shall be payable at the same dates and be recoverable in all respects with and in the same manner as those rates.

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

(3) Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hosepipe or other similar apparatus for horses or for washing motor cars or other carriages or for other purposes in or in connection with stables garages or premises where horses motor cars or other carriages are kept the Corporation may require that all water so used by means of such hosepipe or other apparatus shall be taken by meter on the conditions and at the rates for the time being in force for the supply of water by the Corporation by meter.

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PART III.
—cont.

33. Where a person who takes from the Corporation a supply of water for domestic purposes desires to use water for a swimming bath or bathing pool the Corporation may require that all water required for such swimming bath or bathing pool shall be taken by meter on the conditions and at the rates for the time being in force for the supply of water by the Corporation by meter.

Supplies to
swimming
baths and
bathing
pools.

34.—(1) The Corporation shall not be bound to charge in respect of water supplied for domestic purposes to any office lock-up shop or warehouse the full water rate for the time being charged by them in respect of water supplied for domestic purposes to other types of premises.

Charge for
water
supplied for
domestic
purposes to
offices &c.

(2) If the Corporation exercise the power conferred upon them by subsection (1) of this section the water rate charged by them for water supplied for domestic purposes to any office lock-up shop or warehouse shall be such proportion as they may from time to time prescribe of the water rate for the time being charged by them in respect of water supplied for domestic purposes to a dwelling-house of the same net annual value.

35. Where two or more houses or buildings or parts of a house or building or parts of two or more houses or buildings connected by any means of communication not being a public highway are in the occupation of one and the same company body firm or person they shall be deemed for the purpose of determining the amount of the water rate chargeable by the Corporation in respect of any supply of water for domestic purposes furnished by the Corporation (otherwise than by meter)

Rates
payable on
connected
premises in
one occupa-
tion.

A.D. 1937.

PART III.
—cont.

to any one or more of such two or more houses or buildings or parts of a house or building or parts of two or more houses or buildings to be one tenement having a net annual value equal to the aggregate of the net annual values of the separate houses or buildings or parts of a house or building or of houses or buildings so occupied.

Notice of
discon-
tinuance of
supply.

36. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the waterworks engineer.

Power to
sell water
meters.

37. The Corporation may sell water meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to
supply
water
fittings.

38.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him or repair or alter but shall not manufacture any such water fittings as are required or permitted by their byelaws and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any water fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be provided that they have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof.

(3) Nothing in this section shall affect the amount of the valuation for rating of any rateable hereditament.

Stopcocks
&c. to be
fitted in
communi-
cation pipes.

39.—(1) In the case of all premises connected after the passing of this Act with the mains of the Corporation by means of communication pipes laid by the person requiring the supply or by the Corporation at his request

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

the Corporation may require such person at the time when the pipes are laid to insert or to have inserted and thereafter to maintain a stopcock (which expression where used in this section shall include the necessary covers or boxes for giving access and protection thereto) in the communication or service pipe from the said premises in some position in or under the street as near as is reasonably possible to the point at which such pipe passes the boundary of the street or to the point at which such pipe enters any premises whichever of those points is the nearer to the main of the Corporation with which the pipe is connected and if such person fails when required by the Corporation so to do to insert or have inserted a stopcock in such communication or service pipe or after the insertion of the stopcock fails to maintain it the Corporation may (as the circumstances may require) insert and thereafter maintain a stopcock in such communication or service pipe or repair the stopcock already inserted by or at the request of such person and in either such case recover from such person the reasonable expenses incurred by them in so doing.

(2) For the purpose of enabling any such person to comply with any obligation under this section to insert or to maintain a stopcock and for the purpose of enabling any person to maintain any existing stopcock in a communication or service pipe from any premises within the water limits the provisions of section 121 (Power of owner or occupier to break open streets for laying pipes subject in certain cases to right of local authority to execute the work) of the Act of 1936 shall apply as if the insertion or maintenance of the stopcock were the laying of a pipe to communicate with a main of the local authority.

(3) Any work in connection with the insertion of a stopcock in accordance with the provisions of this section shall be executed to the reasonable satisfaction of the authority for the time being entitled to exercise the functions of maintenance and repair of the street concerned.

40.—(1) The Corporation shall not be bound to supply with water more than one house or building or part of a house or building occupied as a separate tenement by means of the same communication pipe and

A.D. 1937.

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PART III.
—*cont.*

Separate
communi-
cation
pipes may
be required.

A.D. 1937.

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PART III.
—cont.

they may if they think fit require that a separate communication pipe be laid from the main of the Corporation into each house or building or part of a house or building occupied as a separate tenement supplied by them with water.

(2) If the owner of any house or building or part of a house or building occupied as a separate tenement which is supplied with water by the Corporation when so required in pursuance of the preceding subsection fails within a period of one month after the receipt of such requirement to provide a separate communication pipe from the main of the Corporation into such house or building or part of a house or building the Corporation may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing.

Mainten-
ance of
common
pipe.

41. Where several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer.

Power to
Corporation
to repair
communi-
cation
pipes.

42. If in the opinion of the Corporation any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe or apparatus connected with a communication pipe and being a pipe or apparatus which the Corporation are not under obligation to maintain it shall be lawful for the Corporation to execute such repairs to the communication pipe or apparatus as they may think necessary or expedient in the circumstances without being requested so to do and if any injury to or defect in the communication pipe or apparatus shall have been found the expenses incurred by the Corporation for the purpose of ascertaining the cause of injury or defect and executing the repairs (including the expenses of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Corporation from

the owner of the premises supplied or if the communication pipe or apparatus is repairable by the occupier of such premises from the occupier :

A.D. 1937.

PART III.

—cont.

Provided that except in emergency the Corporation shall not under the powers of this section enter any house or private premises unless they shall have given to the occupier of such house or premises and (if the communication pipe or apparatus is repairable by the owner of the said house or premises) to such owner not less than twenty-four hours' previous notice of their intention so to enter.

43. The Corporation by their agents or workmen after forty-eight hours' notice in writing to the occupier or if there is no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Corporation is laid or fixed and through or in which the supply of water is from any cause other than the default of the Corporation discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the forenoon and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal.

Power to
remove
meters and
fittings.

44.—(1) Before any person connects or disconnects any meter or other instrument by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the waterworks engineer of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters or other instruments shall be done at his cost and under the superintendence of the waterworks engineer.

Notice
of con-
nection or
disconnec-
tion of
meters.

(2) Any person offending against this enactment shall for every offence be liable to a penalty not exceeding forty shillings.

45. Subject to the provisions of the Waterworks Clauses Act 1847 the Corporation may for the purpose of measuring the quantity of water supplied or preventing and detecting waste affix and maintain meters and other apparatus on the service pipes and mains

Meters &c.
to measure
water or
detect
waste.
10 & 11 Vict.
c. 17.

A.D. 1937. of the Corporation and stopcocks in the pipes supplying
— houses with water and may insert in the roads or foot-
PART III. ways the necessary covers or boxes for giving access
—cont. and protection thereto and may for that purpose break
up and interfere with public and private streets roads
lanes footways courts passages tramways sewers pipes
wires and apparatus :

Provided that—

- (a) the Corporation shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878;
- (b) nothing in this section shall extend to or authorise any interference with any works or apparatus of the Richmond (Surrey) Electric Light and Power Company Limited to which the provisions of section 15 (Power to undertakers to alter position of pipes and wires) of the Electric Lighting Act 1882 apply except in accordance with the provisions of that section;
- (c) the Corporation shall not without the previous consent of the Southern Railway Company exercise the powers of this section in respect of any street road sewer pipe wire or apparatus belonging to or repairable by or at the expense of that company but such consent shall not be unreasonably withheld and any question which may arise between that company and the Corporation as to whether any such consent has been unreasonably withheld shall be referred to arbitration;
- (d) the Corporation shall not in the exercise of the powers of this section interfere with any pipes or apparatus of the Gas Light and Coke Company except with the consent of that company which shall not be unreasonably withheld and any question whether or not such consent is unreasonably withheld shall be determined by the Minister after consultation with the Board of Trade.

46. In addition to the powers conferred by section 57 (Power to surveyor employed by undertakers to enter houses to inspect &c.) of the Waterworks Clauses Act 1847 any duly authorised officer of the Corporation may at all reasonable times between the hour of four in the afternoon and one hour after sunset enter any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering under the said section 57 or under this section or from making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds :

Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and also be liable to a penalty under this section.

PART IV.

STREETS AND BUILDINGS.

47.—(1) The Corporation may enter into and carry into effect agreements with any owner of lands adjoining any street for the adjustment of the boundary of any such street and for such purpose may give up to such owner land including land forming part of the street in exchange for other land For the purposes of this section the Corporation shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

A.D. 1937.
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PART III.
—cont.
Extension
of power
to inspect
premises.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the borough (a copy of which advertisement shall if the street is a county road be forthwith sent by the Corporation to the county council) and during such period of one month any four inhabitant householders of the borough by themselves or their agent or the county council if the street is a county road may appeal to a court of summary jurisdiction against the proposals and subsections (2) to (7) of section 92 (As to appeals)

A.D. 1937. of this Act shall apply to any such appeal as if the proposals were a decision of the Corporation.

PART IV.

—cont.

(3) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street and if by reason or in consequence of any such agreement it becomes necessary to alter any such telegraphic line the enactments contained in section 7 (Provision as to work done in pursuance of special Acts of Parliament which involves alteration in telegraphic line) of the Telegraph Act 1878 shall apply to any such alteration as though the Corporation or the owner of the adjoining land (as the case may be) were “undertakers” within the meaning of the said Act.

(4) Nothing in this section shall be taken to dispense with the consent of any Government department to any appropriation exchange or other disposition of any lands of the Corporation in any case in which such consent would have been required if this Act had not been passed.

(5) Nothing in this section shall apply to any county road in respect of which the functions of maintenance and repair are for the time being exerciseable by the county council.

Frontage
line in new
streets.

48.—(1) Every person who intends to lay out a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactment or byelaw with respect to streets and buildings from time to time in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called “the building line”) and the Corporation shall be deemed to have approved any building line unless within one month after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

A.D. 1937.
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PART IV.
—*cont.*

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

Stopping
up and
diversion of
highways.

49.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Corporation that a highway within the borough is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the borough can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted :

Provided that the Corporation shall not make an application under this section in regard to a road vested in the county council without the consent of the county council which shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by the Minister of Transport.

Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(2) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

(a) has at least twenty-eight days before the date on which the application is made been served either personally or by registered post on—

(i) the owners or reputed owners and the occupiers of all land abutting on the highway; and

(ii) (when the application relates to a classified road as defined in the Local Government Act 1929) on the Minister of Transport and the county council; and

(iii) (when the application relates to a highway situate within a distance of one

(2) The Corporation may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them or by any highway authority) already formed upon which buildings have not already been erected.

A.D. 1937.

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PART IV.
—cont.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Corporation or before the expiration of the one month aforesaid without their approval nor without the approval of the Corporation beyond or in front of the building line approved or prescribed by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Corporation.

51 & 52 Vict.
c. 52.

(5) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the byelaws with respect to streets and buildings in force within the borough or of the Public Health (Buildings in Streets) Act 1888 the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

hundred feet from any point in the boundary between the borough and the borough of Barnes) on the mayor aldermen and burgesses of the last mentioned borough; and

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PART IV.
—cont.

- (b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as are reasonably sufficient for notifying persons using the highway of the application;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such a plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

(3) On the hearing of such an application the Corporation and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions either by the Corporation or by any such person as aforesaid who was or claimed to be heard by the court.

(4) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

42 & 43 Vict.
c. 49.
23 & 24
Geo. 5. c. 38.

- (a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order;
- (b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal;
- (c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a re-hearing.

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PART IV.
—cont.

(5) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever.

(6) Provided that—

- (i) nothing in this section shall authorise the diversion over any land of any highway unless the written consent of every person interested in that land is produced to and deposited with the court; and
- (ii) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace.

(7) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (6) of this section among the records of quarter sessions.

(8) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable.

(9) Any application or order under this section—

- (a) may include two or more highways which are connected with each other;
- (b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle way or footway.

(10) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

50.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor cycle) in passing to and from such premises the Corporation may either—

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PART IV.

—cont.
Crossings
for horses
or vehicles
over
footways.

- (a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe; or
- (b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Corporation may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Corporation require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing (including any sums paid by them under so much of section 57 (For protection of certain statutory undertakers) of this Act as relates to this section) from the owner or occupier.

(3) If the Corporation allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle other than a motor cycle subject to any condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(4) Notwithstanding the provisions of section 18 (Crossing for cattle &c. over footways) of the Public Health Acts Amendment Act 1907 every person desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Corporation for an estimate

7 Edw. 7.
c. 53.

A.D. 1937.

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PART IV.
—cont.

of the cost thereof and after having obtained such estimate may deposit with the Corporation the amount thereof. When such deposit shall have been made the Corporation shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Corporation by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Corporation under this section.

(6) Nothing in this section shall apply to any county road in respect of which the functions of maintenance and repair are for the time being exerciseable by the county council.

Fencing of
forecourts.

51.—(1) In any case in which the forecourt of any premises adjoining a street or any steps or projection placed in any such forecourt or any goods placed therein whether for sale or not are a source of danger obstruction or inconvenience to the public the Corporation may require the owner of the premises well and sufficiently to fence such forecourt from the street.

(2) Any person who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

As to
erection of
retaining
walls.

52.—(1) Before any person shall erect on any land within the borough a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as may be approved by the Corporation.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

A.D. 1937.

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PART IV.
—cont.

(3) The provisions of this section shall not extend or apply to any land belonging to or which may hereafter be acquired by a railway company or to any retaining wall erected thereon.

53.—(1) For the purpose of preserving the amenities of the borough it is hereby enacted that it shall not be lawful after the commencement of this section to erect in or within fifteen feet of any street in the borough any hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

Restrictions
on adver-
tisement
hoardings.

(2) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The consent of the Corporation under this section shall not be required for a hoarding or similar structure erected within any railway station or upon any property of a railway company for the purposes of such railway company except in so far as such hoarding or similar structure fronts upon a street repairable by the inhabitants at large.

54.—(1) Before placing or erecting any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street the person proposing to place or erect such hoarding wall or fence shall give notice of his intention so to do to the Corporation and such notice shall be accompanied by plans and particulars of the hoarding wall or fence proposed so to be placed or erected.

As to
erection of
hoardings
&c. at
street
corners.

(2) If the placing or erection of such hoarding wall or fence would constitute a danger to the traffic in the streets upon adjoining or near to which the same is

A.D. 1937.

PART IV.
—cont.

proposed to be placed or erected by obstructing the view of any foot passenger or the driver of any vehicle in a street of vehicular or pedestrian traffic the Corporation may within one month of the receipt of the said notice prohibit such placing or erection or may allow the same subject to such conditions or modifications of the said plans and particulars as they may think fit. If within one month of the receipt of the said notice the Corporation shall not have prohibited such placing or erection or allowed the same subject to a condition or to a modification of such plans or particulars they shall be deemed to have allowed such placing or erection.

(3) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Corporation may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(4) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

(5) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 (Prevention of obstruction to view at corners) of the Roads Improvement Act 1925 or by section 1 (Power to adopt standard widths for roads) or section 2 (Restriction of building development along frontages of certain roads) of the Restriction of Ribbon Development Act 1935.

15 & 16
Geo. 5. c. 68.25 & 26
Geo. 5. c. 47.

Provision
of portable
fire-fighting
and
first-aid
appliances
in certain
buildings.

55.—(1) If in the opinion of the Corporation any building to which section 59 (Exits entrances &c. in the case of certain public and other buildings) or section 60 (Means of escape from fire in the case of certain high buildings) of the Act of 1936 apply (not being such a building as is mentioned in paragraph (a) or paragraph (e) of subsection (5) of the said section 59) is not provided with proper and sufficient portable fire-fighting and first-aid appliances they may serve on the owner of the building a notice requiring him within a

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

reasonable time to be specified in the notice to provide such appliances as may be specified in the notice.

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PART IV.

—cont.

(2) If the owner of the building alleges that any occupier should bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court and that court after giving the occupier an opportunity of being heard may make such order as appears just and equitable in all the circumstances.

(3) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Corporation under this section.

(4) The appliances provided in connection with any such building as aforesaid shall not be altered without the consent of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition.

(5) This section shall not apply to a nursing home in respect of which a person is for the time being registered under section 187 (Registration of nursing homes) of the Act of 1936.

(6) Any person who fails to comply with any requirement of the Corporation under subsection (1) of this section or who offends against the provisions of subsection (4) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

56.—(1) Every dwelling-house erected after the commencement of this section shall be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Food
storage
accommo-
dation.

(2) Every existing dwelling-house and every dwelling-house the erection of which was commenced before the commencement of this section shall where reasonably practicable be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any

A.D. 1937.

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PART IV.
—cont.

such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

For pro-
tection of
certain
statutory
under-
takers.

57. For the protection of the Metropolitan Water Board the Gas Light and Coke Company the Richmond (Surrey) Electric Light and Power Company Limited and the London and Home Counties Joint Electricity Authority (each of whom are in this section referred to as "undertakers") the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the undertakers and the Corporation apply and have effect :—

- (1) In this section "apparatus" means all or any electric lines (as defined in the Electric Lighting Act 1882) posts mains pipes works or other apparatus belonging to the undertakers :
- (2) In any case where under the powers of section 47 (Adjustment of boundaries of streets) of this Act the Corporation propose to give up to or convey to an owner of land any part of a street in or under which any apparatus is laid or placed the Corporation shall (in addition to any notices given by them pursuant to the said section) give to the undertakers to whom the apparatus belongs notice in writing of their proposal and notwithstanding any agreement entered into or grant or conveyance executed by the Corporation under the said section those undertakers their engineers and workmen shall have and may exercise the same powers rights and privileges with respect to such apparatus as if the land in or under which the same is laid or placed had continued to be part of the street or those undertakers may at their option and if so required by the owner of the land shall divert or alter the position of such apparatus to such position in and at such depth below the footway or carriageway of the street as altered under the said powers as the Corporation may reasonably approve and any expense reasonably incurred by the undertakers

in effecting any such diversion or alteration as aforesaid shall on demand be repaid to them by the Corporation :

A.D. 1937.

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PART IV.
—cont.

- (3) (a) Whenever by virtue of section 49 (Stopping up and diversion of highways) of this Act any public highway or part of a public highway in which any apparatus is for the time being laid or placed is stopped up or diverted or the public right of way thereover is extinguished the undertakers to whom the apparatus belongs shall be at liberty to remove it to and relay it in the highway (if any) substituted for the highway or part of a highway so stopped up or diverted or over which the public right of way is so extinguished or in such other situation as they may reasonably determine or to provide and lay in such substituted highway or other situation similar apparatus equally suitable in lieu of such existing apparatus and the Corporation shall on demand repay to them the cost reasonably incurred by them in so doing ;

(b) Whenever by reason of the exercise by the Corporation of the powers of the said section any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Corporation under the provisions of this subsection) is rendered derelict useless or unnecessary the Corporation shall forthwith pay to the undertakers to whom the apparatus belongs such a sum as may be agreed between the Corporation and the undertakers or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of such apparatus and such apparatus shall upon such payment become the property of the Corporation :

- (4) Not less than twenty-eight days before pursuant to section 50 (Crossings for horses or vehicles over footways) of this Act a carriage-crossing across the footway of any street in or under which any apparatus is for the time being situate is constructed or the use of any such footway is allowed by the Corporation the

A.D. 1937.

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PART IV.
—cont.

Corporation shall give notice in writing to the undertakers to whom the apparatus belongs and those undertakers may and if so required by the Corporation shall alter the position of any apparatus belonging to them in or under such footway by relaying the apparatus in such position (under either the carriageway or the footway) and at such depth as the Corporation may reasonably approve and the Corporation shall on demand repay to the undertakers the cost reasonably incurred by them in so doing :

(5) The Corporation shall pay to the undertakers the reasonable cost of and incidental to the cutting off of any apparatus from any other apparatus of the undertakers and of and incidental to any other works or things rendered necessary or expedient in consequence of any such alteration as is referred to in subsection (2) or paragraph (a) of subsection (3) or subsection (4) of this section of the position of such apparatus or in consequence of such apparatus being rendered derelict useless or unnecessary :

(6) (a) If any difference shall arise between the Corporation and the undertakers or their respective engineers under this section (other than a difference as to the meaning and construction of this section) such difference shall be referred to arbitration ;

(b) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the undertakers may be under in respect of their apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid as far as may be reasonably possible interference with any purpose for which the apparatus of the undertakers is used.

Saving for
Southern
Railway
Company.

58. Nothing contained in section 48 (Frontage line in new streets) of this Act shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to the Southern Railway Company in the exercise of their statutory powers or

to any lands held or acquired or which may hereafter be held or acquired by that company with the authority of Parliament so long as such building railway work or land is used or held by the said railway company primarily for railway purposes.

A.D. 1937.

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PART IV.
—cont.

PART V.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

59.—(1) If the medical officer certifies in writing that any person in the borough—

Removal of
infirm and
diseased
persons in
certain
cases.

(a) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

(b) is suffering from any grave chronic disease;

and that such person is unable to devote to himself or to receive from persons with whom he resides proper care and attention and that thorough inquiry and consideration have shown the necessity in the interest of the health of such person and for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination of such person by a registered medical practitioner to be nominated by them (if they think fit) may make an order for the removal of such person to a suitable hospital infirmary or other institution or other suitable place provided within the borough or within a convenient distance of the borough and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period or periods each not exceeding three months as may be determined by any further order or orders made under and in accordance with the provisions of this section.

(2) The medical officer shall give to any person proposed to be removed under the provisions of this

A.D. 1937. section or to some person being in charge of such person
— three clear days' notice of his intention to make such
PART V. application and of the time and place when and where
—cont. such application will be made.

(3) The cost of the removal of any person to a hospital infirmary or other institution or place as aforesaid and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation and during any period for which a person is so detained the Corporation may and if so required by the court shall make towards the maintenance of any dependants of that person such contributions as the Corporation think fit or as may be directed by the court as the case may be :

Provided that where the institution to which the said person is to be removed is a public assistance institution the authority to which the institution belongs may in the exercise of their powers under any scheme made under Part I of the Local Government Act 1929 assume such obligations with regard to the maintenance of the said person and his dependants as may be agreed between that authority and the Corporation.

(4) An order under this section may be addressed to such officer of the Corporation as the court making the order may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to a court of summary jurisdiction acting for the same place as the court which made the order by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made.

Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

(6) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the Corporation so to do either generally or in any particular case in which those powers are proposed to be exercised and no order shall be made under the provisions of this section for the removal of any person to any hospital or other institution without the consent in writing of the authority or body having the control thereof.

A.D. 1937.

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PART V.
—cont.

60. The Corporation may make byelaws for securing the proper ventilation and lighting of any existing stable used for the accommodation of horses (whether the same is used as such at the commencement of this section or not) and for the prevention of insanitary conditions (a) in or about or arising out of any such stable or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the commencement of this section.

Byelaws as
to stables.

61.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed within the borough in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

Power to
prohibit
persons in
advanced
state of
tuberculosis
from selling
&c. food.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Corporation to such person.

(3) If any such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

A.D. 1937.

PART V.
—cont.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

PART VI.

HUMAN FOOD.

Registration
of premises
used in
connection
with sale of
ice cream or
preserved
food.

62.—(1) As from the commencement of this section no premises shall be used for any of the following purposes (that is to say) :—

- (a) the sale or the manufacture for purposes of sale of any commodity consisting of ice cream or any substance similar thereto or the storage of any such commodity intended for sale; or
- (b) the preparation or manufacture of sausages or potted pressed pickled or preserved meat fish or other food intended for sale;

unless the premises are registered under this section for that purpose by the Corporation.

(2) If any person uses any premises in contravention of this section he shall be guilty of an offence and liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Every application for the registration of premises under this section shall be made by the owner or occupier of the premises or by the person intending to occupy them.

(4) If the Corporation are satisfied that any premises are unsuitable for use for any purpose for which they have been registered under this section or for which application for registration has been made under this section the Corporation may serve upon—

- (a) the occupier for the time being of the premises or the person on whose application they were registered; or

- (b) the person applying for registration;

as the case may be a notice requiring him to appear before them on such day not being earlier than seven days after the date of the notice as may be specified therein in order to show cause why the Corporation should not for the reasons specified in the notice cancel the

registration of the premises for the said purpose or refuse the application and if that person fails to show cause to the satisfaction of the Corporation why they should not do so the Corporation may cancel the registration of the premises for that purpose or refuse the application Any such notice shall state the effect of the two next succeeding subsections.

A.D. 1937.

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PART VI.
—cont.

(5) If the Corporation cancel the registration or refuse the application they shall if required by such occupier or person as aforesaid deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such cancellation or refusal is based.

(6) Any person appealing under section 92 (As to appeals) of this Act against any decision of the Corporation under this section shall do so within fourteen days after the date of such decision.

(7) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter any premises in the borough to which he has reasonable cause to believe that the provisions of this section apply for the purpose of ascertaining—

- (a) whether there is occurring therein any contravention of the said provisions; or
- (b) in the case of premises which have been registered by the Corporation under this section for any of the purposes specified in subsection (1) thereof or in respect of which application for such registration for any of those purposes has been made to them whether the premises are suitable for that purpose or any of the purposes specified in subsection (1) of this section :

Provided that in exercising the powers conferred on them by this section at any premises owned or used by a railway company the Corporation shall conform to such reasonable requirements of the company as are necessary to prevent obstruction to or interference with the working of the traffic of the railway thereat and the railway company shall not be liable for any accident or injury happening to any officer servant or agent of the Corporation upon any lines of rails belonging to the company

A.D. 1937. or upon any land immediately adjoining any such lines
of rails.

PART VI.
—cont.

(8) For the purpose of this section the preparation of meat or fish by any process of cooking shall be deemed to be the preservation thereof.

(9) This section shall not apply in relation to any premises used as a theatre music hall cinema club hotel or restaurant.

Byelaws as
to food.

63.—(1) The Corporation may make byelaws for promoting and securing sanitary and cleanly conditions in the transport or exposure for sale in the open air of any article intended to be sold for food.

(2) At least one month before applying to the Minister for confirmation of any byelaws made under this section applicable to the transport of food by a railway company the Corporation shall give notice to the company of their intention to make such application and such notice shall be accompanied by a copy of the proposed byelaws and such company shall be entitled to make representations to the Minister with regard thereto.

(3) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of a byelaw made under this section and any person refusing such entry or inspection or obstructing any such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

Penalty on
original
vendor of
unsound
food.
38 & 39 Vict.
c. 55.
53 & 54 Vict.
c. 59.

64.—(1) Where it is shown that any article liable to be seized under sections 116 to 119 of the Public Health Act 1875 as amended by section 28 (Extension of 38 & 39 Vict. c. 55 ss. 116–119) of the Public Health Acts Amendment Act 1890 and found in the possession of any person was sold to him by another person for food (the proof that the same was not sold for food resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 (Power of justice to order destruction of unsound meat &c.) of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in the last mentioned section

[1 EDW. 8. & *Richmond (Surrey)*
1 GEO. 6.] *Corporation Act, 1937.*

[Ch. 1.]

unless he proves that at the time he sold the said article he did not know and had no reason to believe that the said article was in such condition.

A.D. 1937.

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PART VI.
—cont.

(2) Where any article of food has been condemned by a justice under the said section 117 as amended by the said section 28 the person to whom the same belongs or did belong at the time of deposit of such article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in the said section 117 unless he proves that at the time of such deposit he did not know and had no reason to believe that the said article was in such a condition as to be liable to be so condemned.

(3) Before any article liable to be condemned under the said section 117 as amended by the said section 28 and this section is dealt with by a justice the medical officer or the sanitary inspector shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or sanitary inspector of the intention of the medical officer or sanitary inspector to have the same dealt with by a justice and any person who may be liable in respect of such article to a prosecution under the aforesaid provisions shall be entitled to attend the proceedings before the justice and to be heard with his witnesses upon the application for the condemnation of any such article.

65. Sections 116 to 118 of the Public Health Act 1875 as amended by section 28 (Extension of 38 & 39 Vict. c. 55 ss. 116–119) of the Public Health Acts Amendment Act 1890 shall extend to authorise the medical officer or the sanitary inspector to inspect examine and search any cart or other vehicle or any basket sack bag or package whether open or closed in which he has reason to suspect that there is any animal or any of the articles referred to in the said sections intended for sale for food or in the course of delivery after sale for food and the provisions of such sections shall apply accordingly :

Further
powers in
relation to
unsound
food.

Provided that nothing in this section shall authorise the inspection examination or search of any cart or other vehicle belonging to a railway company and used by them for the purposes of their traffic or of any basket

A.D. 1937. sack bag or package in the possession of such company as carriers thereof.

PART VI.

—cont.

Medical
practitioners
to notify
cases of food
poisoning.

66.—(1) Every registered medical practitioner attending on a person in the borough who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is.

(2) The Corporation shall pay to every registered medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice of medical officer of any public body or institution.

As to
inspection
of premises
used for
storage of
food.

15 & 16
Geo. 5. c. 71.

67.—(1) On any inspection of any room carried out by the medical officer sanitary inspector or any other officer of the Corporation under the provisions of subsection (5) of section 72 (Precautions against contamination of food intended for sale) of the Public Health Act 1925 such officer shall have power to take samples of any materials commodities or articles of food found therein making reasonable payment therefor and if he intends to submit any sample to analysis or bacteriological examination he shall forthwith notify to the occupier of such room or his agent his intention to have the same analysed by the public analyst or examined by a bacteriologist appointed by the Corporation or employed by them for the purpose and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such manner as its nature will permit and shall if required to do so deliver one of the parts to such occupier or agent. The officer shall afterwards retain one of the said parts for future comparison and submit the third part if he deems it right to have the sample analysed or examined to the public analyst or such bacteriologist.

(2) The expression “public analyst” in this section means the analyst appointed in pursuance of section 15 (Appointment of analysts) of the Food and Drugs (Adulteration) Act 1928.

(3) If any such officer as aforesaid has reasonable ground for suspecting that any material commodity or article of food of which he takes a sample under the powers of this section is likely to cause the occurrence of food poisoning he may by notice in writing delivered to the occupier of the room in which such material commodity or article is found or his agent require that such material commodity or article or any part thereof shall not during such time not exceeding forty-eight hours as may be appointed by such notice or during any longer time which may with the consent of such occupier or his agent be appointed by a further notice delivered as aforesaid be removed except to any such place as may be specified in the notice.

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PART VI.
—cont.

PART VII.

SUPERANNUATION &C.

68.—(1) Words and expressions to which meanings are assigned by the Act of 1922 have in and for the purposes of this Part of this Act the same respective meanings unless there is something in the subject or context repugnant to such construction.

Meaning of
expressions
in Part VII
of Act.

(2) The expression “ officer ” in and for the purposes of this Part of this Act includes a servant and—

in and for the purposes of section 69 (Annuities for widows) of this Act includes any person admitted by the Corporation under subsection (3) of section 5 (Combinations of local authorities) of the Act of 1922 to participate in the benefits prescribed by that Act; and

in and for the purposes of section 71 (Power to grant allowances or gratuities in certain cases) of this Act includes the clerk to the justices of the borough and any teacher who is not entitled to a gratuity under the Teachers (Superannuation) Acts 1918 to 1925 or any Act amending the same and who at the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the borough or permanently and exclusively employed in any public elementary school in the borough whether provided by the Corporation as the local education authority or not so provided.

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PART VII.
—cont.Annuities
for widows.

(3) In and for the purposes of section 70 (As to payments due to deceased employees) of this Act the expression "employee" includes a former employee.

69.—(1) If within one month before the date on which an officer would if he ceased to hold his office or employment first become entitled to a superannuation allowance under paragraph (b) or paragraph (c) of subsection (1) of section 6 (Title to superannuation allowances) of the Act of 1922 or at any time thereafter prior to the date on which he actually ceases to hold his office or employment he gives notice in writing to the Corporation requiring that the provisions of this section shall apply to him and to any wife to whom he is married on the date on which he commences to receive a superannuation allowance or (if he dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation allowance) to any wife to whom he is married at the date of his death then unless the Corporation (being of opinion that the state of health of such person regard being had to his age is not reasonably satisfactory) notify him or his legal personal representative within one month after the receipt of the notice that they do not intend to comply with the requirement the following provisions shall have effect:—

(a) The amount of the superannuation allowance payable to the officer shall in any case covered by the schedule to this Act be such proportion of the superannuation allowance which would have been payable under the Act of 1922 if he had not given a notice under this section as is specified in that schedule as appropriate in relation to the ages of such officer and his wife at the date of his retirement and in any other case such proportion of the said superannuation allowance as is certified by an actuary to be just;

(b) If the officer predeceases his wife and—

(i) was in receipt of or entitled to a superannuation allowance; or

(ii) dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation allowance;

she shall be entitled after his death to receive for life an annuity equal to one-third of the amount of the superannuation allowance which was or would have been payable to him under the Act of 1922 if he had not given a notice under this section.

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PART VII.
—cont.

(2) The Minister may on application made by the Corporation by order alter as respects any officer giving notice under subsection (1) of this section after the date of the order any of the percentages specified in the schedule to this Act so far as may be necessary to secure that the benefits provided by this section for the officer and his wife shall be actuarially equivalent to the benefits to which the officer would have been entitled if he had not given such notice as aforesaid.

(3) Subsection (2) of section 12 (Return of contributions in case of death) of the Act of 1922 shall not apply in respect of any officer who has given notice under subsection (1) of this section.

(4) If the officer shall die before he would have been entitled to receive by way of superannuation allowance if he had not given notice under subsection (1) of this section an amount in the aggregate equal to the amount of his contributions to the superannuation fund with compound interest thereon at three per centum per annum calculated by half-yearly rests the Corporation shall pay to his legal personal representative the difference between the amount which the officer would have been entitled to receive by way of superannuation allowance up to the date of his death if he had not given such notice and the sum to which his contributions to such fund with such compound interest thereon at the rate and calculated as aforesaid amounted at the date of his retirement.

(5) An annuity under this section shall be payable out of the superannuation fund :

Provided that if the superannuation allowance of the officer was by reason of the proviso to subsection (1) of section 16 (Allowance for previous service) of the Act of 1922 not payable wholly out of the superannuation fund such proportion only of the annuity shall be paid

A.D. 1937.

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PART VII.
—cont.

out of the superannuation fund as corresponds to the portion of the said superannuation allowance which was so payable and the balance shall be paid in the case of an officer of the Corporation out of the general rate fund and in the case of an officer of some body other than the Corporation out of the fund out of which the salary or wages of the officer was or were paid.

(6) A notice under this section may be given in respect either of the whole or of a specified part of an allowance and where it is given in respect of a specified part only of an allowance references in this section to the superannuation allowance shall be construed as references to such specified part of the superannuation allowance.

(7) The provisions of section 14 (Allowance not assignable) of the Act of 1922 so far as they are applicable shall apply to every annuity under this section.

(8) The provisions of this section shall also apply to any officer who prior to the passing of this Act but on or after the first day of January nineteen hundred and thirty-seven retired with a superannuation allowance and who (a) within one month after the passing of this Act shall give notice in writing to the Corporation to the effect set forth in subsection (1) of this section and (b) agrees to pay such sum as the treasurer may certify to be equivalent to the sums by which such officer's superannuation allowance would have been reduced if the provisions of this section had been applicable to him at the date of his retirement together with compound interest on such sums at the rate of four per centum per annum.

As to pay-
ments due
to deceased
employees.

70.—(1) On the death of an employee of the Corporation to whom a sum not exceeding one hundred pounds is due on account of salary wages return of superannuation contributions (including interest on those contributions if payable) superannuation allowance or grant if probate of the will of the employee or letters of administration of his estate are not produced within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation may pay

[1 EDW. 8. & *Richmond (Surrey)*
1 GEO. 6.] *Corporation Act, 1937.*

[Ch. 1.]

the sum to the person or persons entitled in distribution to the residuary estate of the employee in accordance with the provisions of paragraphs (i) to (v) inclusive of subsection (1) of section 46 (Succession to real and personal estate on intestacy) of the Administration of Estates Act 1925 and section 9 (Right of illegitimate child and mother of illegitimate child to succeed on intestacy of the other) of the Legitimacy Act 1926 and in default of any such person to the Solicitor for the Affairs of His Majesty's Treasury :

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PART VII.
—cont.

15 & 16
Geo. 5. c. 23.

16 & 17
Geo. 5. c. 60.

Provided that—

(a) The Corporation may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Corporation shall deem it reasonable to allow;

(b) If the Corporation receive notice in writing of any claim of a creditor of the deceased employee before the expiration of one month from the death of the employee they shall retain the whole amount due to the deceased employee in their hands or a sufficient sum thereof to satisfy the claim (whichever amount shall be the less) until the claim has been satisfied disproved or withdrawn.

(2) The Corporation before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require—

(a) where the total estate of the deceased employee including the amount of such moneys does not after deduction of debts and funeral expenses exceed one hundred pounds a declaration to that effect by the person or one of the persons to or among whom the Corporation propose to pay or distribute such moneys; and

(b) where the total estate of the deceased employee including the amount of such moneys but after deduction of debts and funeral expenses exceeds one hundred pounds the production of a certificate from the Commissioners of Inland Revenue

A.D. 1937.

PART VII.
—cont.

of the payment of the estate duty and of a duly stamped receipt for the legacy or succession duty payable in respect of such moneys or of a certificate stating that no legacy or succession duty is payable.

(3) The Corporation and any officer of the Corporation making any payment under the provisions of this section shall be discharged from all liability in respect of such payment and the receipt of the person to whom any such payment is made shall be a good and sufficient discharge to the Corporation for the sum paid.

Power to
grant
allowances
or gratuities
in certain
cases.
15 & 16
Geo. 5. c. 84.

71.—(1) The Corporation may in cases not within the Workmen's Compensation Act 1925 or the Teachers (Superannuation) Acts 1918 to 1925 or any other Act for the time being in force relating to the superannuation of teachers and not entitled to benefits under the Act of 1922 grant a weekly or other allowance (not exceeding one-half of his salary or wages) or in lieu thereof a gratuity of any sum (not exceeding two years' pay) to any officer who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any officer who may die in their service.

(2) In and for the purposes of this section the expression "benefits" shall not include a right to the return of contributions (and interest thereon) made to the superannuation fund.

PART VIII.

FINANCIAL PROVISIONS.

Power to
borrow.

72.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of that table and they shall pay off all moneys so borrowed within such periods as they may determine not exceeding those

respectively mentioned in the third column of the said table :—

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(1)	(2)	(3)
Purpose.	Amount.	Period for repayment.
(a) The construction of the street works.	£5,150	Thirty years from the date or dates of borrowing.
(b) The purchase of lands under the powers of this Act.	£29,270	Sixty years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

PART VIII.
—cont.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act or any scheme made under section 76 (Consolidated loans fund) of this Act and for the time being in force shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

73. Section 213 (Sinking fund) and section 214 (Adjustments of sinking fund) of the Act of 1933 shall (subject to the provisions of any scheme made under section 76 (Consolidated loans fund) of this Act and for the time being in force) apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Application of Act of 1933 to existing sinking funds.

74.—(1) The Corporation may give notice to any person being registered as a holder of any security of the Corporation (other than stock) that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen

Dividend warrants by post.

A.D. 1937.

PART VIII.

—cont.

days from the receipt of such notice give notice to the Corporation of such objection the Corporation may from time to time send orders for the payment of interest or dividend warrants by post to the address of such person appearing in the register :

Provided that if such person give notice to the Corporation that he desires such orders or warrants to be sent to another person at a given address the Corporation may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any security of the Corporation any one of them may for the purpose of this section be regarded as the holder of the security unless notice in writing to the contrary has been given to the Corporation by any other of them.

(3) The posting by the Corporation of an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation be equivalent to the delivery of the order or warrant to the registered holder of the security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

45 & 46 Vict.
c. 61.

Use of
moneys
forming
part of
sinking and
other funds.
42 & 43 Vict.
c. 31.

75. Notwithstanding anything contained in this or any previous enactment the Corporation may use for the purpose of any statutory borrowing power exercisable by them any capital sum accepted by them under section 80 (Extension of section 2 (3) of the Public Health (Interments) Act 1879) of this Act and any moneys forming part of but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals repairs depreciation capital reserve contingency insurance or other similar fund (in this section referred to as "the lending fund") subject to the following conditions :—

(1) The moneys so used shall be repaid out of the general rate fund within the period and by the method within and by which a loan raised under the statutory borrowing power would be repayable :

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the general rate fund or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power :

A.D. 1937.

PART VIII.
—cont.

- (2) In the accounts of the general rate fund an amount equal to interest calculated at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power on any moneys so used and for the time being not repaid shall be credited to the lending fund and debited to the undertaking or purpose with reference to which the moneys are so used :
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to reborrowing of sums raised under the statutory borrowing power shall apply accordingly.

76.—(1) Notwithstanding anything contained in any other Act or Order on and after the thirty-first day of March nineteen hundred and thirty-eight the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid—

Consoli-
dated loans
fund.

- (a) all moneys borrowed by the Corporation by the issue of securities of the Corporation together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power ;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital

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PART VIII.
—cont.

assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;

- (c) the appropriate sums provided in each year by the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt;
- (d) a sum equal to the income arising from the investment of the moneys in the consolidated loans fund and carried to the general rate fund and a sum or sums which together with such first mentioned sum will be equal to the aggregate amount of all dividends and interest payable in each year on securities of the Corporation issued in exercise of any statutory borrowing power and remaining outstanding; and
- (e) such sums as are necessary to meet the financing and other revenue expenses connected with the management of the consolidated loans fund and separate accounts shall be kept of these sums and their application:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) (a) The moneys in the consolidated loans fund shall be used or applied by the Corporation—

- (i) in the redemption of securities of the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation;
- (ii) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate account of the Corporation; and
- (iii) in the payment of dividends and interest on the securities of the Corporation issued in exercise of any statutory borrowing power and remaining outstanding:

And the moneys in the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys in the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

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PART VIII.
—cont.

(b) Any income arising from the investment of the moneys in the consolidated loans fund in the manner provided by the foregoing paragraph of this subsection shall be carried to and form part of the general rate fund.

(3) The Corporation may pay into the consolidated loans fund any capital sum accepted by them under section 80 (Extension of section 2 (3) of the Public Health (Interments) Act 1879) of this Act and any moneys forming part of any reserve renewals repairs depreciation capital reserve contingency insurance superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

- (a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and
- (b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of securities of the Corporation shall continue in force.

(5) Nothing in this section shall apply to moneys borrowed from the Public Works Loan Commissioners.

A.D. 1937.

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PART VIII.
—cont.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may be altered amended or revoked by a scheme made and approved in like manner as the original scheme.

Capital
reserve
fund.

77.—(1) The Corporation may establish a fund to be called “ the capital reserve fund ” for the purpose of defraying any expenditure to which capital is properly applicable (other than expenditure in connection with their water undertaking) to an amount not exceeding five thousand pounds in any one transaction and such fund shall be formed by appropriating in the accounts of the Corporation such sums out of the general rate fund as the Corporation from time to time deem expedient :

Provided that—

(a) except as provided by paragraph (b) of subsection (2) of this section any sum or sums so appropriated to the capital reserve fund from the general rate fund shall not exceed in any year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to section 9 (Provisions as to precepts) and section 58 (Power to make rules) of the Rating and Valuation Act 1925 ;

(b) appropriations and credits to the capital reserve fund shall cease to be made whenever that fund amounts to the sum of twenty-five thousand pounds.

(2) (a) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by this Act) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital reserve fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the

fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (b) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital reserve fund.

A.D. 1937.

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PART VIII.
—cont.

78.—(1) The Corporation may establish a fund to be called “the renewal and repairs fund” and such fund shall be formed by appropriating in the accounts of the Corporation such sums out of the general rate fund as the Corporation from time to time deem expedient:

Renewal
and repairs
fund.

Provided that—

(a) except as provided by paragraph (b) of subsection (3) of this section any sum or sums so appropriated to the renewal and repairs fund from the general rate fund shall not exceed in any year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to section 9 (Provisions as to precepts) and section 58 (Power to make rules) of the Rating and Valuation Act 1925;

(b) appropriations and credits to the renewal and repairs fund shall cease to be made whenever that fund amounts to the sum of fifteen thousand pounds.

(2) The renewal and repairs fund shall be applicable only to meet expenses requisite for the provision maintenance and renewal of horses carts mechanically-propelled vehicles stables depots boilers equipment and apparatus in connection therewith and the maintenance and repair of paths and apparatus in public walks and pleasure grounds and of buildings (other than buildings forming part of or used for the purposes of the water undertaking of the Corporation or buildings in respect of which the Corporation are required by the Housing Act 1936 to keep a housing repairs account) and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

(3) (a) Pending the application of the renewal and repairs fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied

A.D. 1937. in any other manner authorised by this Act) be invested
in statutory securities.

PART VIII.
—cont.

(b) Any income arising from the investment of the moneys in the renewal and repairs fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (b) to subsection (1) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

Insurance
fund.

79.—(1) The Corporation may establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good all losses damages costs and expenses to which the Corporation may be subjected in consequence of the happening of any event against which in the absence of that fund the Corporation would ordinarily insure and such fund shall be formed by appropriating in the accounts of the Corporation such sums out of the general rate fund as the Corporation from time to time deem expedient:

Provided that—

(a) either—

(i) the sums so appropriated in any year shall be of such amount as shall in the opinion of the Corporation be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the several risks for which the insurance fund is intended to provide; or

(ii) if the Corporation partly insure in any insurance office of good repute against the whole or any part of all or any of the several risks for which the insurance fund is intended to provide the sums so appropriated in any year shall be of such amount as will together with the premiums paid for the last mentioned insurance be in the opinion of the Corporation not less than the aggregate amount aforesaid;

(b) appropriations and credits to the insurance fund shall cease to be made whenever that fund amounts to such sum as may from time to time be prescribed by the Corporation.

A.D. 1937.

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PART VIII.
—cont.

(2) The amounts appropriated to the insurance fund shall be debited in the accounts of the Corporation against the particular undertaking department or service of the Corporation which if the risks against which it is intended to provide were insured against in an insurance office would be properly chargeable with the payment of the premiums of such insurance.

(3) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the several risks for which the insurance fund is intended to provide.

(4) (a) Pending the application of the insurance fund to the purposes authorised in subsection (1) of this section the moneys in the fund shall (unless applied in any other manner authorised by this Act) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the insurance fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to any limitation on the amount of the fund which may from time to time be prescribed by the Corporation) an amount equivalent to such income shall be credited to the insurance fund.

(5) For the purposes of this section the Corporation may if they deem it expedient include in the risks to be covered by the insurance fund risks of accident to any person employed in any school college educational institute or hostel maintained by the Corporation notwithstanding that such school college institute or hostel has not been provided by the Corporation as the local education authority.

(6) The insurance fund may be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of the happening of any event against which it is intended to provide insurance

A.D. 1937.
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PART VIII.
—cont.

in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest such sums of money as will be necessary to make up the deficiency The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Minister may direct having regard to the risks through which such deficiencies arise.

Extension
of section
2 (3) of the
Public
Health
(Inter-
ments)
Act 1879.

80.—(1) Subsection (3) of section 2 (The provisions of 38 & 39 Vict. c. 55 extended to cemeteries) of the Public Health (Interments) Act 1879 shall be extended to enable the Corporation to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument in a cemetery provided by the Corporation under the Public Health Acts 1875 to 1925 or in a burial ground provided by the Corporation under the Burial Acts 1852 to 1906.

(2) (a) Any such capital sum shall (unless applied in any other manner authorised by this Act) be invested in statutory securities and a sum equal to the interest thereon applied in maintaining the grave or grave space or monument in such manner as the Corporation think fit and for such period as may be agreed between the Corporation and the person by whom such capital sum is paid.

(b) Any income arising from the investment of such capital sum in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the sum to the purposes authorised shall be carried to and form part of the general rate fund.

(3) Any such capital sum and the interest thereon shall be shown separately in the accounts of the Corporation relating to the cemetery or burial ground.

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

81. The Corporation may pay out of the general rate fund and general rate— A.D. 1937.

- PART VIII.
—cont.
- (a) reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings; Subscrip-
tions to
local
government
associations
and other
expenses.
- (b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

82. If a justice be satisfied on complaint by any officer of the Corporation that any person is quitting or about to quit any premises and has failed to pay on demand any general rate or any water rate or charge which may be due from him to the Corporation and intends to evade payment of the same by departing from the premises the justice may (in addition to issuing a summons for non-payment of the rate or charge) issue a warrant under his hand authorising any officer of the Corporation to seize forthwith and detain the goods and chattels of such person until the complaint is determined on the return of the summons. Recovery
of rates
from
persons
removing.

PART IX.

MISCELLANEOUS.

83.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair. Silencers
for internal
combustion
engines.

A.D. 1937.

—
PART IX.
—cont.

(2) The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid :

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway company and used by them for the purposes of their railway undertaking or belonging to the Gas Light and Coke Company the Richmond (Surrey) Electric Light and Power Company Limited or the Port of London Authority and used by them for the purposes of their respective undertakings.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice in writing from the Corporation to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

Noise
nuisance.

84.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Act of 1936 :

Provided that no complaint shall be made to a justice under section 99 (Power of individual to make complaint as to statutory nuisance) of the said Act unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance complained of.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case :

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means within

the meaning of the said Act of preventing or mitigating it have been adopted. A.D. 1937.

PART IX.
—cont.

(3) Nothing contained in this section shall apply to a railway company or the Gas Light and Coke Company or the Port of London Authority or their respective servants exercising statutory powers.

(4) If and so far as this section is inconsistent with a byelaw made by the Port of London Authority the latter shall prevail.

(5) Nothing in this section shall affect the power of the Corporation to make byelaws under section 249 (Byelaws for good rule and government and suppression of nuisances) of the Act of 1933.

85. For the purpose of abating or mitigating any nuisance annoyance or damage caused by the congregation at any place in the borough of house doves or pigeons having or believed by the Corporation to have no owner or of preventing or minimising any such nuisance annoyance or damage which might in the opinion of the Corporation be so caused the Corporation may notwithstanding anything in the Larceny Act 1861 or in any other Act seize and destroy or sell or otherwise dispose of or cause to be seized and destroyed or sold or otherwise disposed of any such house doves or pigeons in excess of such number as the Corporation may consider reasonable and take such other steps as they may deem necessary for any such purpose : Nuisance arising from pigeons. 24 & 25 Vict. c. 96.

Provided that the Corporation shall not in the exercise of the powers conferred by this section—

- (a) enter upon any building or land (other than a public highway) without the consent of the occupier or the person having the exclusive control and management of such building or land; or
- (b) execute or do any work or thing affecting the structure of such building or the use of such land without the consent of the person in whom such building or land is vested; or
- (c) knowingly destroy sell or otherwise dispose of or cause to be destroyed sold or otherwise disposed of any house dove or pigeon belonging to any person.

A.D. 1937.

PART IX.
—cont.Byelaws
with
respect to
riverside
walk.
63 & 64 Vict.
c. 1.

86.—(1) The Corporation may make byelaws with respect to the riverside walk for all or any of the purposes specified in section 14 of the scheme with respect to Petersham Common confirmed by the Metropolitan Commons (Petersham) Supplemental Act 1900.

(2) (a) No byelaw made under this section shall affect any public right of towing on foot on the riverside walk or affect any right power authority or jurisdiction of the Port of London Authority with respect to the riverside walk.

(b) If and so far as a byelaw made under this section is inconsistent with a byelaw made by the Port of London Authority the latter shall prevail.

(3) In this section the expression “ riverside walk ” means—

(a) that part of the public walk situate on the east side of the horse towing path on the eastern bank of the river Thames which lies between Old Palace Lane Richmond and Ferry Lane Kew; and

(b) that part of Ferry Lane Kew which runs on the east side of the said horse towing path.

(4) The riverside walk is coloured pink on the map signed in triplicate by the Right Honourable Robert Croft Bourne the chairman of the committee of the House of Commons to whom the Bill for this Act was referred and deposited as to one copy in the Parliament Office as to another copy at the Committee and Private Bill Office of the House of Commons and as to the third copy at the town hall Richmond.

Application
of Highway
Acts to
borough.

87. Notwithstanding anything contained in any Act the provisions of the Highway Acts 1835 to 1885 as varied or amended by subsequent Acts shall apply throughout the borough as if none of the roads therein had on the thirty-first day of August eighteen hundred and thirty-five been repairable under or by virtue of the provisions of any local Act and as if the office of surveyor of highways for any area now forming part of the borough had not been abolished by any local Act passed prior to the said date.

In executing
works for

88. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being

in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

A.D. 1937.
—
PART IX.
—cont.
owner Corporation
liable for
negligence
only.

89. As respects byelaws made under this Act the confirming authority for the purposes of section 250 (Procedure &c. for making byelaws) of the Act of 1933 shall be the Minister.

Confirming
authority
for
byelaws.

90.—(1) The provisions of section 62 (Registration of premises used in connection with sale of ice cream or preserved food) of this Act shall come into operation on but not until such date as may be fixed by a resolution of the Corporation of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough Every such advertisement shall also state the effect of the said section and the date specified therein as the date on which it shall come into operation shall not be less than one month after the date of publication of the advertisement Provided that applications for registration may be made and determined before the said section comes into operation.

Commence-
ment of
certain
provisions
of this Act.

(2) A copy of the newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) It shall be lawful for any person who when the said section came into operation—

(a) was using any premises for any such purpose as is mentioned in that section; and

A.D. 1937.

PART IX.
—cont.

(b) had made application in accordance with the provisions of that section for such registration as is required thereby;

to continue to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of section 92 (As to appeals) of this Act.

(4) Parts IV (Streets and buildings) V (Infectious disease and sanitary provisions) and VI (Human food) (other than the section thereof referred to in subsection (1) of this section) and the undermentioned sections of this Act—

Section 8 (Power to alter steps pipes areas &c.);

Section 39 (Stopcocks &c. to be fitted in communication pipes);

Section 44 (Notice of connection or disconnection of meters);

Section 46 (Extension of power to inspect premises);

Section 83 (Silencers for internal combustion engines);

Section 84 (Noise nuisance);

Section 91 (Restriction on right to prosecute);

shall come into operation on the first day of October nineteen hundred and thirty-seven.

Restriction
on right to
prosecute.

91. Section 298 (Restriction on right to prosecute) of the Act of 1936 shall apply to offences created by or under this Act as if they were offences created by or under that Act.

As to
appeals.

92.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part IV (Streets and buildings) Part V (Infectious disease and sanitary provisions) or Part VI (Human food) of this Act may except where otherwise expressly provided or where some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

A.D. 1937.

—
PART IX.

—cont.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in the notice to the person concerned informing him of his right to a hearing before the Corporation with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Corporation shall not execute such work or take such action; and

(c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other

A.D. 1937.

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PART IX.
—*cont.*

decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

Evidence of
appoint-
ments
authority
&c.

93. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under any public general Act for the time being in force in the borough or under any local enactment it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the Corporation or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Apportion-
ment of
expenses in
case of joint
owners.

94. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under any such enactment are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor.

Compensa-
tion how to
be deter-
mined.

95. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method of determining the amount thereof is not otherwise provided for such amount shall in case of dispute be determined in the manner provided by subsection (2) of section 278 (Compensation to individuals for damage resulting from exercise of powers under Act) of the Act of 1936 :

Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for

[1 EDW. 8. &
1 GEO. 6.]

Richmond (Surrey)
Corporation Act, 1937.

[Ch. 1.]

any offence the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

A.D. 1937.

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PART IX.
—cont.

96. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act:

Saving for
indict-
ments &c.

Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

97. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Application
of Arbitra-
tion Acts
1889 to
1934.

98. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

As to
breach of
conditions
of consent of
Corpora-
tion.

99. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several
sums in one
summons.

PART IX.
—cont.

Applica-
tion of
section 265
of Public
Health Act
1875.

100. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local Act for the time being in force within the borough as if the same were re-enacted therein.

Applica-
tion of
provisions
of Act of
1936.

101.—(1) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto:—

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 293 (Recovery of expenses &c.);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 328 (Powers of Act to be cumulative).

(2) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable to Part IV (Streets and buildings) Part V (Infectious disease and sanitary provisions) and Part VI (Human food) thereof:—

Section 277 (Power of councils to require information as to ownership of premises);

Section 287 (Power to enter premises);

Section 288 (Penalty for obstructing execution of Act);

Section 289 (Power to require occupier to permit works to be executed by owner);

Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);

Section 292 (Power to make a charge in respect of establishment expenses);

Section 294 (Limitation of liability of certain owners); A.D. 1937.

Section 295 (Power of local authority to grant charging orders); PART IX.
 —cont.

Section 329 (Saving for certain provisions of the Lands Charges Act 1925). 15 & 16
 Geo. 5. c. 22.

102. A judge of any court or a justice shall not be disqualified from acting in the execution of any local enactment by reason of his being liable to any rate. Judges not disqualified.

103. The Minister or the Minister of Transport as the case may be may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 (Power of Government departments to direct inquiries) of the Act of 1933 shall apply accordingly. Inquiries by Minister and Minister of Transport.

104. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any lands or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those Commissioners on behalf of His Majesty first had and obtained for that purpose. Crown rights.

105. The costs charges and expenses of and incidental to preparing applying for and obtaining this Act as taxed by the taxing officer of one of the Houses of Parliament shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act. Costs of Act.

A.D. 1937.

The SCHEDULE referred to in the
foregoing Act.

Percentage of the full superannuation allowance payable under the Act of 1922 which may be paid to an officer or servant during his lifetime in order that his wife shall be entitled to receive during the remainder of her life after his death an annuity equal to one-third of the amount of such full superannuation allowance.

Age last birthday of wife at date of retirement of officer or servant.	Age last birthday of officer or servant at date of his retirement.							
	60	61	62	63	64	65	66	67
50	81 $\frac{3}{4}$	—	—	—	—	—	—	—
51	82 $\frac{1}{2}$	81	—	—	—	—	—	—
52	83	81 $\frac{3}{4}$	80 $\frac{1}{4}$	—	—	—	—	—
53	83 $\frac{3}{4}$	82 $\frac{1}{2}$	81	79 $\frac{1}{2}$	—	—	—	—
54	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$	80 $\frac{1}{2}$	78 $\frac{3}{4}$	—	—	—
55	85 $\frac{1}{4}$	84	82 $\frac{3}{4}$	81 $\frac{1}{4}$	79 $\frac{3}{4}$	78	—	—
56	86	84 $\frac{3}{4}$	83 $\frac{1}{2}$	82 $\frac{1}{4}$	80 $\frac{3}{4}$	79	77 $\frac{1}{4}$	—
57	86 $\frac{3}{4}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	83	81 $\frac{1}{2}$	80	78 $\frac{1}{4}$	76 $\frac{1}{2}$
58	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85	83 $\frac{3}{4}$	82 $\frac{1}{2}$	81	79 $\frac{1}{4}$	77 $\frac{1}{2}$
59	88	87	85 $\frac{3}{4}$	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$	80 $\frac{1}{4}$	78 $\frac{1}{2}$
60	88 $\frac{3}{4}$	87 $\frac{3}{4}$	86 $\frac{1}{2}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	82 $\frac{3}{4}$	81 $\frac{1}{4}$	79 $\frac{3}{4}$
61	89 $\frac{1}{2}$	88 $\frac{1}{2}$	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85	83 $\frac{3}{4}$	82 $\frac{1}{4}$	80 $\frac{3}{4}$
62	90 $\frac{1}{4}$	89 $\frac{1}{4}$	88 $\frac{1}{4}$	87 $\frac{1}{4}$	85 $\frac{3}{4}$	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$
63	90 $\frac{3}{4}$	90	89	88	86 $\frac{3}{4}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	83
64	91 $\frac{1}{4}$	90 $\frac{1}{2}$	89 $\frac{3}{4}$	88 $\frac{3}{4}$	87 $\frac{3}{4}$	86 $\frac{1}{2}$	85 $\frac{1}{4}$	84
65	91 $\frac{3}{4}$	91	90 $\frac{1}{4}$	89 $\frac{1}{2}$	88 $\frac{1}{2}$	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85
66	92 $\frac{1}{4}$	91 $\frac{1}{2}$	91	90 $\frac{1}{4}$	89 $\frac{1}{4}$	88 $\frac{1}{4}$	87 $\frac{1}{4}$	86
67	92 $\frac{1}{2}$	92	91 $\frac{1}{2}$	90 $\frac{3}{4}$	90	89	88	87

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